



PRIVACY NOTICE FOR: ESA Procurement related Contract Management

[For Internal Reference - DPNR Reference Number Enter your DPNR No. 1232]

Kindly provide this “DPNR Reference Number” in any communication with the ESA Data Protection Officer (DPO@esa.int) for quick reference of the Processing in question.

This Privacy Notice was last updated on: 29th of September 2023

Introduction

The European Space Agency (herein the “Agency” or “ESA”) is an intergovernmental organisation established by its Convention opened for signature in Paris on 30 May 1975. The Protection of Personal Data is of great importance for ESA, which strives to ensure a high level of protection as required by the ESA Framework on Personal Data Protection (herein the “ESA PDP Framework”) which applies for processing of Personal Data at ESA, available at:

http://www.esa.int/About_Us/Law_at_ESA/Highlights_of_ESA_rules_and_regulations

The ESA PDP Framework applicable for the processing of Personal Data within ESA is composed of the following elements:

- the Principles of Personal Data Protection, as adopted by ESA Council Resolution (ESA/C/CCLXVIII/Res.2 (Final)) adopted on 13 June 2017;
- the Rules of Procedure for the Data Protection Supervisory Authority, as adopted by ESA Council Resolution (ESA/C/CCLXVIII/Res.2 (Final)) adopted on 13 June 2017; and
- the Policy on Personal Data Protection adopted by Director General of ESA on 5 February 2018 and effective on 1 March 2022

Scope of this Privacy Statement

This notice is intended to inform you about the processing of your personal data during the management of the contract with ESA and more specifically about:

- the identity of the Data Controller and contact details of the ESA Data Protection Officer (“DPO”);
- the type of personal data collected and processed;
- the modalities of collection of personal data;
- the purpose and legal basis of the collection and processing;
- the recipients to whom the personal data of the Data Subject is disclosed;
- the time-limits for storing the personal data;
- your rights and the modalities by which you can exercise them and the practical modalities of exercising your rights and those rights of other persons, when processed in this Processing Activity under the ESA PDP Framework.

Please be aware that all references to “Data” in this document if not otherwise stated relate to data by which an individual could be identified/ having an identifying character, broadly defined as Personal Data.



Description and the Purpose for this Processing of your Personal Data: *What is this processing about?*

Your personal data are collected and further processed via

- esa-star, during the proposal submission;
- details filled in the contract;
- Personal Data provided as part of the proposal;
- email/letters for the change of key personnel and contact details;
- contract change notices.

For the purpose of

- the performance of the Contract, including implementation, management, monitoring and audits;
- the management of the relationship of the Parties in relation to the Contract, notably for administrative, financial, audit or for communication purposes;
- compliance with any legal or regulatory obligation to which a Party is subject.

Legal Basis: *What is the legal basis for processing the personal data?*

Specific Legal Basis for this processing:

- **5.2.1 i. (e) ESA Personal Data Protection Policy; The performance of a contract concluded by the Agency within its purpose in relation with an activity carried out by the Agency in the framework of, and in conformity with, the ESA Convention and the applicable rules and procedures.**

Data Controllers, Data Processors, other Recipients of Personal Data and their Contact Details: *Who Processes what data in which capacity?*

The following table lists all the involved companies, agencies or otherwise, where your personal data may be processed and all relevant information concerning their involvement in this activity.

Processing Entity and Responsibility	Personal Data Categories	Type of Personal Data in detail	Description of Processing Responsibilities and specific Purpose of the Processing
European Space Agency (ESA) as <u>Controller</u>	e.g. "Contact details"	Name, Surname; Phone number; Work address; E-mail;	Your personal data are collected and further processed as described in this Privacy Notice upon the decision taken by ESA. It is processed by ESA through and limited to ESA staff and ESA contractor personnel directly involved in this activity. Contact details are processed to manage all contract related activities when it comes to managing the relationship between ESA and the Contractor.
	CV information (it is required)	Curriculum Vitae including	CVs of the contractor's key personnel are required to verify their qualifications and experience. Further, the contractor is contractually



	for the contract performance as stipulated in Clause 9 of the ESA General Clauses and Conditions)	education, professional experience, description of the person's job and responsibilities and the precise assignment of the person to the activity under the Contract	required, in case the contractor propose a replacement of key personnel, to submit the CVs of the replacements so that ESA can verify that the proposed replacements possess equivalent qualifications to the key person being replaced.
ESA DPO	All Personal Information required to accomplish the DPO's duties as defined in the ESA PDP	All Personal Information required to accomplish the DPO's duties as defined in the ESA PDP	According to ESA PDP Framework, your first and unique point of contact concerning personal data matters is the ESA Data Protection Officer ("DPO"). In this regard your personal information may be processed by the ESA's DPO to reply to your requests and to exercise your rights under the ESA PDP.
Microsoft Corporation as Processor	CV information (it is required for the contract performance as stipulated in Clause 9 of the ESA General Clauses and Conditions)	Curriculum Vitae including education, professional experience, description of the person's job and responsibilities and the precise assignment of the person to the activity under the Contract.	CVs will be kept in the email system and in the Microsoft 365 environment. ESA has contracts in place to ensure storage within the European Union and contractually limited the processing under the full control of ESA.

Contact Details per involved entity:

Entity	Contact Details
European Space Agency (ESA)	Headquarters: 24 Rue du Général Bertrand, CS 30798, 75345 Paris Cedex 07, France. Your first point of contact is ESA's DPO at DPO@esa.int at all times. You may also contact the Contract Officer identified in the Contract in charge for this activity directly by the email in the contract.
ESA DPO	Data Protection Officer: DPO@esa.int
Microsoft Corporation	Please contact ESA directly at DPO@esa.int

Personal Data Retention and Deletion: *How long are your personal data retained by ESA?*

Personal data may only be retained by ESA for the time period necessary to fulfil the legitimate purpose of the processing.

Your Personal Data is stored and processed based on the following timeframes:

Personal Data Categories and Place of Processing	Retention
--	-----------



ESA: All contract related data including CVs	The Agency may keep your personal data for as long as necessary for the fulfilment of the above-mentioned purposes. Your Personal Data shall be deleted thereafter. CVs are retained for as long as necessary to assure ESA contractual requirements are fulfilled and deleted thereafter.
--	--

Other Considerations

- The Agency does not consider your personal data as an asset for sale and, thus, does not sell your personal data to any third parties.
- ESA does not plan to implement any automated decision-making within this activity.

Your rights (Data Subject Rights) *How can you access, erase, rectify, complete or amend your personal data?*

You have the right to be informed in a transparent manner about: the processing of your personal data (the Controller, purpose, recipients, etc.); your rights and the modalities of exercising these, (e.g. erasure, rectification, completion, or amendment as per the conditions under PDP 5.1. i.; right for every interested Data Subject to lodge a complaint before the Supervisory Authority in case the former demonstrates or has serious reasons to believe that a Data Protection Incident occurred in relation with his/her Personal Data, following a decision of the Agency (e.g. Data Protection Officer). The right of information under PDP 5.4.1 i. and the right of access under Section 5.4.1 ii. shall not apply: (a) where and insofar as the Data Subject is already in possession of the information; (b) for the right of information, when processing of Personal Data is necessary for any Investigation or Dispute Resolution Procedure; (c) for the right of access, where and insofar such access would conflict with an Investigation Procedure concerning the Data Subject.

If you would like to exercise any of those rights, please send a request explicitly specifying your query to the ESA DPO via e-mail at dpo@esa.int or addressed to the:

ESA
Data Protection Officer
24 Rue du Général Bertrand
CS 30798, 75345 Paris Cedex 07
France

via postal service.



Please keep in mind that the more specific information you can provide to us about the Activities, Events, Systems, ESA Departments and/or Processes where your personal data is to your knowledge stored, the sooner we can respond to your enquiry, request or complaint.

- We seek to respond without undue delay, and in any event within one month of receipt of the request. However, that period may be extended by two further months where necessary, taking into account the complexity and number of the requests. You will be informed of any such extension, together with the reasons for the delay.

If you wish to submit a complaint to the ESA Data Protection Supervisory Authority, you are required to comply with the Rules of Procedure of the Supervisory Authority set forth in the ESA PDP Framework:

(https://www.esa.int/About_Us/Law_at_ESA/Highlights_of_ESA_rules_and_regulations).

You will be required to demonstrate that a Data Protection Incident occurred in relation to your personal data, following a decision of the Agency or at least be able to provide serious reasons and indicators to establish that such an incident occurred.

PERSONAL DATA BREACH: *What should you do in case of a data protection incident?*

If you have any concerns about your personal data or became the victim of a data breach of ESA processed personal data, you should contact ESA's DPO, as first point of contact, by sending an email to: dpo@esa.int and provide all information available to you regarding the potential breach.